

Form 59.48B

20

No.

Supreme Court of Nova Scotia (Family Division)

Between: [copy standard heading]

[full name, including middle name(s)]

[*Petitioner/Applicant*]

and

[full name, including middle name(s)]

Respondent

Corollary Relief Order

Before the Honourable Justice [name or blank]

The parties were divorced by a divorce order dated , 20 .

This proceeding is before the court for determination [*in the absence of the parties / following a divorce trial*] .

Proof of service of the petition was established and the pleadings, and the evidence presented by [*affidavit / testimony / affidavit and testimony*] , were considered.

[add if there are children]

The parties have the following [*child/children*] of the marriage as defined by the *Divorce Act*:

Name of Child

Date of Birth

[add if child support is to be paid]

[name of party paying child support] is found to have an annual income of \$ [amount] .

[add if child support includes special or extraordinary expenses]

For the purpose of making an order for payment of special or extraordinary expenses, [name of party receiving child support] is found to have an annual income of \$ [amount] .

OR

[replace the two income clauses with the following, if applicable]

For the purpose of making an order for payment of child support in an amount other than the table amount and special or extraordinary expenses, [name of party paying child support] is found to have an annual income of \$ [amount] , and [name of party receiving child support] is found to have an annual income of \$ [amount] .

[add if there is a court order for contact time with the child/children]

Contact time/interaction arrangements involving the [child/children] of the marriage were granted pursuant to the [Divorce Act/Parenting and Support Act] by court order dated [date issued] bearing the court file number [insert #].

On motion of [name of moving party, parties, or counsel] :

[select the applicable paragraph and delete the other to complete this sentence]

it is ordered, under the *Divorce Act*, the *Matrimonial Property Act* and any other applicable legislation, that the terms of the attached [separation agreement / minutes of settlement / agreement] are incorporated into this order and provide the terms of corollary and other relief, to the extent the jurisdiction of the Court allows.

[if this paragraph is selected, a description of the contents of the attachment is not required and paragraphs 1 to 10 are not required]

OR

the following is ordered under the *Divorce Act*, the *Matrimonial Property Act* and any other applicable legislation.

[if this paragraph is selected, a selection from paragraphs 1 to 10, as applicable, is also required]

[delete paragraphs 1 to 6 if there are no children]

Decision-making responsibility

- 1 a. Decision-making responsibility of the following [child/children] is granted to [name/both parties jointly] :

Name of Child

Date of Birth

- b. The following terms apply to decision-making responsibility set out at paragraph 1a:
[delete if not applicable]

Parenting time and arrangements

- 2 [name] has primary care and residence for the [child/children] , and [name] has parenting time at the following times, according to the following terms: [provide details]

OR

- 2 [name] has primary care and residence for the [child/children], and [name] will have reasonable parenting time on reasonable notice to [name] or at times agreed to by the parties.

OR

- 2 The parties will share parenting time with the [child/children], such that each parent caring for the [child/children] for a minimum of 40% of the time over the course of a year, according to the following schedule and according to the following terms: [provide details]

Child support payments

- 3 a. [name] must pay child support to [name] in the amount of \$ [amount] each month, based on the applicable table amount of the *Federal Child Support Guidelines*.

[add if an amount for special or extraordinary expenses is to be paid]

- b. In addition to the table amount, [name] must pay child support to [name] in the amount of \$ [amount] each month for [their] share of the following special or extraordinary [expense /expenses] :

[use the following list for each child's expense or create a chart providing this information]

Child's name:

Description of expense:

Total monthly net expense: \$

Monthly amount to be paid: \$

Percentage: %

- c. In total, [name] must pay child support to [name] in the amount of \$ [amount] each month, consisting of the table amount of \$ [amount] per month, plus special or extraordinary expenses of \$ [amount] per month.

When child support payments are due

- 4 Child support payments are due on the first day of each month starting on _____, 20____.

OR

[provide payment schedule, for example, weekly, bi-weekly, or twice per month on specified dates]

Child support through health plan

- 5 [name] must *[continue/acquire and continue]* medical, dental and drug plan coverage for the *[child/children]* available through *[their]* present or subsequent employer and [name] must see that the other party is reimbursed without delay after a receipt is delivered by the other party for submission to the insurer.

OR

[set out specific terms]

Ongoing disclosure for child support

- 6 No later than June 1 of each year, [name /st *both parties*] must provide [name /*each other*] with a copy of *[their]* income tax return, completed and with all attachments, even if the return is not filed with the Canada Revenue Agency, and also provide each other with all notices of assessment from the Canada Revenue Agency, immediately after they are received. If non-taxable or unreported income is earned or received, [name] must provide [name] with supporting documents to show all non-taxable and unreported income earned for the prior income tax year.

Spousal support

- 7 Neither party is required to pay spousal support to the other.

OR

- 7 [name] must pay spousal support to [name] in the amount of \$ [amount] each month.

When spousal support payments are due

[delete if neither party is to pay spousal support]

- 8 Spousal support payments are due on the first day of each month starting on , 20 .

OR

[provide payment schedule, for example, weekly, bi-weekly, or twice per month on specified dates]

Director of Maintenance Enforcement

[delete if neither party is to pay support]

- 9
- a. All support payments must be made payable to [name of party receiving support] .
 - b. The payments must be sent by [name of party paying support] to the Office of the Director of Maintenance Enforcement, P.O. Box 803, Halifax, Nova Scotia B3J 2V2, while the order is filed for enforcement with the Director.
 - c. A court officer must send a copy of this order, under section 9 of the *Maintenance Enforcement Act*, and the current designated addresses of the parties, to the Office of the Director of Maintenance Enforcement.
 - d. Both parties must advise the Office of the Director of Maintenance Enforcement of any change to their address, within ten (10) days of the date of the change, under section 42(1) of the *Maintenance Enforcement Act*.
 - e. [name of party paying support] must advise the Office of the Director of Maintenance Enforcement of any change in location, address and place of employment, including the start or end of employment, within ten (10) days of the date of the change, under section 42(2) of the *Maintenance Enforcement Act*.

Property Division

- 10 All property and debts were divided by the parties and each shall retain possession and ownership of property now in their possession. Neither party is required to transfer an equalization payment to the other.

OR

Property is divided under the *Matrimonial Property Act* as follows:

Enforcement

- 11
- a. A requirement to pay money under this order, that is not enforced under the *Maintenance Enforcement Act*, may be enforced by execution order, or periodic execution order.
 - b. The sheriff must do such things as are necessary to enforce this order and, to do so, may exercise any power of a sheriff permitted in a recovery order or an execution order.

c. All constables and peace officers are to do all such acts as may be necessary to enforce the terms of this order and they have full power and authority to enter upon any lands and premises to enforce this order.

Issued _____, 20

Court Officer